

Tentative Rulings

August 13, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

10. *Castro's Cleaning Servs. Co., Inc., v Ryan Peacock, Inc., et al*, Case No. CIVSB2505507
Motion to Compel Responses from Ryan Peacock, Inc. to Special Interrogatories, Set One
8/13/26, 9:00 a.m., Dept. S-17

The Court would inquire with movant as to whether the motion is now **MOOT**, given the procedural posture of the case. (See Notice, 6/22/26 [striking Ryan Peacock, Inc. answer and cross-complaint for failure to prosecute].)

11. *Fouse v. Behavior Autism Therapies, LLC*, Case No. CIVSB2428112
Defendant's Motion to Compel Arbitration
8/13/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the motion and allow Plaintiff a sur-reply to address new evidence raised for the first time in the reply. In this matter, movant forwarded new evidence in conjunction with its reply. Plaintiff objects on that basis.

"The general rule of motion practice . . . is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *Espejo v. SCPMG* (2016) 246 Cal.App.4th 1047; *Ruiz v. Moss* (2014) 232 Cal.App.4th 836.) However, a trial court is "vested with a sound discretion as to the permissible scope of evidence offered in rebuttal." (*Tesoro del Valle Master Homeowners Assn. v. Griffin* (2011) 200 Cal.App.4th 619, 641.)

Here, the Court notes the strong public policy favoring the determination of cases on the merits, and it would continue this hearing to allow adequate due process with Plaintiff a sur-reply.

12. *Robertson v. City of Rialto, et al*, Case No. CIVSB2325118
Defendants' Motion to Seal
8/13/26, 9:00 a.m., Dept. S-17

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The Court would **GRANT**, in part, and seal only that portion of the at-issue deposition transcript (currently lodged as Exhibit 6) that discloses confidential closed session discussions regarding a councilmember's government claim. The Court would **ORDER** the existing Exhibit 6 returned and would have movants file Exhibit 6 with the salient pages filed *separately* under seal. The relevant pages are 23-25 and 27.)¹

Case Summary

In essence, this is an invasion of privacy case. Plaintiff, who is the mayor of Rialto, alleges that Defendant City and its Police Department has permitted at least ten unauthorized California Law Enforcement

¹ The Court notes that movants identify citations on pages 28 through 31; however, those pages were not provided under the currently lodged Exhibit 6.